

26 Titus Avenue — the whole picture

Case ZBA2026-063 · prepared for Nickolas Levasseur, 30 Mystic Street · September 11, 2026 · working paper, not for filing as written

The deadline is Friday, October 9, 2026.

At the opening of the September 10 meeting the Chair told the room: “You have 30 days from the date of the hearing to request a rehearing.” Thirty days from September 10 falls on Saturday, October 10, so treat Friday, October 9 as the last safe day. Do not wait for a written decision: as of today the City has posted decisions and minutes only through August 13, 2026, and the Board’s standing script promises a notice of decision to applicants who are *denied* — it says nothing about notice to an opponent of a granted variance.

The Board’s next public hearing is **October 8, 2026**.

1. What was decided

Case	ZBA2026-063, 26 Titus Avenue, R-1B Zoning District, Ward 9
Proposal	Two townhouse buildings, one of eight units and one of five, 13 multifamily dwelling units total; roughly 9,360 sq ft of new footprint and 19,500 sq ft of new floor area
Relief granted	Six sections — 4.3-A.1.C Multifamily Dwellings; 8.1.2 Planned Development Lot Area; 5.3.1.E Townhouse Building Type, districts permitted; 5.3.1.E.5.B height in stories (3 where 2.5); 5.3.1.E.5.C height in feet (38 where 35); 8.7.2.F.2 parking location
Lot	49,484 sq ft of buildable area where 78,000 sq ft is required for the use proposed — 63% of the requirement
Vote	Granted 4 to 1 on September 10, 2026. Member Matt Carnevale dissenting. No conditions attached.
Board	Bob Brough, Chair; Craig St. Pierre, Vice Chair; Catherine Balesky; Matt Carnevale; Scott Godzick, alternate. City staff: Michael Landry, Deputy Director, Building Regulations.
Applicant	Doug MacGuire, PE, of The Dubai Group, Inc., Londonderry, as agent. Owner of record T & L 2018, LLC, 156 Lowell Road, Hudson — a Boyer family address; deed at Book 9788, Page 1181.

2. The case against the variance, on the applicant’s own record

The strongest material against this application was submitted by the applicant.

The hardship claim contradicts the applicant’s own sealed exhibit **STRONG**

The written memorandum states the parcel “can support five (5) single family home lots meeting the underlying zoning,” and the By-Right Subdivision Plan in the packet shows five conforming lots, each with more than 6,000 sq ft of buildable area. At the hearing the engineer told the Board the opposite:

“If you could have nine single family homes here by right and you can’t get more than one or two, is that a reasonable use of the property? I would argue that it isn’t.” (1:54:25)

And the owner: “the hardship is the steep slopes. We can’t essentially build the houses. We were showing what it was. But you can’t build them.” (1:48:17)

No drawing, grading analysis or cost estimate supports the oral claim. Minutes earlier the same engineer had conceded the arithmetic runs the other way: “this lot would support more than what we’re showing here, just physically based on buildable area divided by 6,000.” (1:53:48) The Board was asked to disbelieve the applicant’s own stamped exhibit on the applicant’s unsupported say-so, and did.

No evidence at all on surrounding property values **STRONG**

Member Carnevale asked the only evidentiary question either applicant faced on this criterion: “Did you obtain a broker price opinion to support that?” The answer was “so no, we did not” (1:51:22), with an offer to get one if the Board wanted it. The Board did not ask. The burden on this criterion is the applicant’s, and it produced no appraisal, market study or comparable sale. The substitute offered was 130 to 135 feet of woods that sits on the Mystic Street owners’ land, which the engineer conceded those owners may cut at will (1:14:03).

The five criteria were never argued **USEFUL**

At the close of his presentation the engineer said: “Obviously I wrote up all the criteria specifically. I’m happy to go through that or read that in if needed, but I can turn it back to the board for any questions.” (1:19:53) No member asked him to. The entire criteria showing is a two-page memorandum. The Titus application cites no case law; the South Lincoln Street application heard immediately before it cited two decisions and applied them to facts — and was denied.

The density argument asks for the wrong district USEFUL

The engineer argued that under R-M standards the buildable area would permit seventeen townhouse units, and that townhouses are allowed three stories and forty feet (1:18:26–1:19:33). Both apply the standards of a district this parcel is not in. That is an argument for rezoning under RSA 675, a legislative act of the Board of Mayor and Aldermen, not a variance argument. The standard that does apply, §8.1.2, requires 6,000 sq ft per planned-development unit, which on 49,484 sq ft yields **eight units, not thirteen** — a point no one raised.

3. What the rest of the meeting shows

The Board heard thirteen cases on September 10 and granted ten, denied two and tabled one. A grant is therefore not by itself remarkable, and any argument that rests on the Board being hostile or unusually generous will fail. What the other twelve cases establish is the standard the Board applied everywhere else.

It refused to vote on a plan with an error — in the very next contested case STRONGEST

At 26 Sullivan Street (ZBA2026-078), a nine-unit multifamily proposal on 5,430 sq ft where 10,000 is required, a member found the front elevation labelled as facing Flaherty Lane when the address and true front is Sullivan Street:

“So I’m not comfortable voting on anything that’s been represented here on paper. That’s not a fact. It’s not accurate.”
“Somebody needs to correct these and I’m not comfortable moving forward on this and granting variances on something that’s incomplete.”

Another member agreed the case “should be tabled for more information because this is not accurate.” The applicant’s agent conceded the mislabelling, and the case was continued to October 8.

The comparison. A mislabelled elevation on a sheet the architect himself titled “Schematic Elevations” was enough to stop this Board from voting. Ninety minutes earlier the same Board granted six variances on an application whose central factual claim was contradicted by the applicant’s own sealed exhibit. This argument needs no speaker attribution and no inference about anyone’s motives. It is a comparison of what the Board did on one evening, and the minutes will confirm both halves.

It saw what a genuine slope constraint looks like STRONG

At 374 Thornton Street (ZBA2026-080), heard later the same evening, the City’s Zoning Review deducted steep slopes exactly as it did here. The surveyor explained the mechanic on the record: “any slope greater than 25% is considered nonbuildable.”

LOT	GROSS	SLOPE DEDUCTED	BUILDABLE	SHARE BUILDABLE
374 Thornton St, Lot 48B	13,955 sq ft	12,143 sq ft	1,812 sq ft	13%
26 Titus Avenue	60,406 sq ft	10,922 sq ft	49,484 sq ft	82%

Thornton Street needed relief because what remained fell below the 6,000 sq ft minimum. Titus Avenue has more than eight times that minimum. And the Thornton applicant’s own written narrative states the purpose of the provision: “The intent of the steep slope section of the ordinance is to prevent creating lots that cannot be built on.” On that statement, a deduction leaving 49,484 sq ft does not implicate the section at all. The Vice Chair’s finding of “18% that is undevelopable” described the ordinance’s ordinary operation and treated it as a unique hardship.

Titus is the only substantial grant of the night with no conditions STRONG

The Board conditioned a chiropractor’s signs to 5–10 p.m., seven days. It conditioned a retaining wall on vegetation screening across the full terrace. It conditioned an animal boarding use, and it dictated remediation space by space at Myrtle Street. Thirteen units in two new buildings, six sections of relief and 19,500 sq ft of new floor area were granted clean.

The Vice Chair’s conduct, measured USEFUL, WITH CARE

Every substantive statement by Vice Chair St. Pierre was classified against the record in the six cases where the transcript anchors him as the speaker — 93 statements, identical categories and counting rule in each, with the seven unanchored cases excluded entirely.

CASE	STATEMENTS	GROUNDING IN THE RECORD
58 Myrtle Street	11	82%
218 South Lincoln Street	27	81%
374 Thornton Street	6	67%
248 Vinton Street	6	67%
801 Hanover Street	11	45%
26 Titus Avenue	32	28%

Titus is last by seventeen points, and is the only case containing any statement in two categories: **4 of 4** instances of his own expertise supplied as the applicant's proof, and **6 of 6** findings contradicted by testimony given in that same hearing. Across the whole four-and-a-half hour meeting the words "broker" and "real estate" appear five times in two cases. He invoked his own profession once in thirteen cases:

"Also, I am a real estate broker, and I'm not aware of any circumstance where a development of this nature in Manchester has diminished a property around it. I've never seen a report or evidence of that." (1:59:02)

That came roughly eight minutes after the applicant told the Board it had no broker opinion. In short: in the other cases he acts like an investigator; in this one he acts like an advocate.

4. The developer's public record

Todd Boyer bought this parcel at the City's surplus land auction on June 8, 2024. Asked about the auction he was quoted saying some of the properties were "a little rough, difficult to build on, but I'm glad I got the ones I was interested in," and the same account reports he planned to build single-family homes. He is also a repeat applicant: in March 2025 he obtained ZBA2025-020, a variance from minimum buildable lot area for an Erie Street lot (5,570 sq ft where 7,500 required) bought at the same auction, and told the Planning Board he would build homes for his daughter and his nephew.

Knowledge of a restriction at purchase does not bar a variance, but under *Hill v. Town of Chester*, 146 N.H. 291 (2001), it is a factor the Board may weigh, and it bears on whether a hardship is self-created. **Verify before quoting:** the article groups the purchases as "these West Side properties," and Titus Avenue is not on the West Side, so the single-family intent may have been said of the group rather than this parcel. The "difficult to build on" quotation does not carry that problem.

5. What will not work, and why

These are the arguments to leave out. Each one fails against the same record that supports the rest, and putting any of them in a filing would cost credibility on the parts that are sound.

- **A conflict of interest between the Vice Chair and the developer.** Searched and not found. The auction was run by an independent auctioneer, not by his firm, and nothing links his brokerage to the developer or the engineer. Do not allege it.
- **That the 18% slope figure was invented.** It is derivable from the City's own Zoning Review sheet: 10,922 sq ft of 60,406 is 18.08%. The argument is that the figure describes the ordinance working normally, not that it is false.
- **That the Board was hostile or acted in bad faith.** It granted ten of thirteen applications that night. The argument is about what it did *not* require here, not about animus.
- **That the Vice Chair advocates generally.** He is engaged and opinionated in every case, and his closing recitation — "no one benefits more from a denial than the applicant will from the approval," literal enforcement a hardship "for the applicant" — is identical everywhere, including cases he voted to deny. Nothing about that formula was aimed at this application.
- **Attribution beyond the six anchored cases.** Seven of thirteen cases give no anchor for who was speaking. At Sullivan Street in particular the applicant's principal is also named Matt, so "Matt" there usually means the applicant rather than Member Carnevale.
- **The transcript as evidence in itself.** It is machine-generated and unverified. Every quotation used in a filing should be confirmed against the City's recording first.

6. What can be done, and what each path requires

A. Motion for rehearing — RSA 677:2 **DO THIS FIRST**

Filed with the Board within 30 days, setting out every ground on which the decision is claimed to be unlawful or unreasonable. It is also a prerequisite: under RSA 677:3 no ground may be raised on appeal that was not set out in the motion. Put every argument in, even the ones you expect to lose. Lead with the Sullivan Street comparison, the applicant's contradiction of its own sealed plan, the absence of any property-value evidence, and §8.1.2's eight-unit arithmetic.

B. Appeal — RSA 677:4 or RSA 679 **IF REHEARING IS DENIED**

Within 30 days of the Board's ruling on rehearing, either to the Superior Court or to the Housing Appeals Board. The standard is deferential: the Board's factual findings are treated as prima facie lawful and reasonable, and the decision will not be set aside unless unreasonable or unlawful by the balance of probabilities. That deference is precisely why the record comparisons matter more than any characterisation of conduct.

C. Right-to-Know request — RSA 91-A **SEND NOW**

The City has posted no decision and no minutes from September 10. Request the recording, the notice of decision, the complete case file, the Zoning Review sheets, any correspondence about the application, the 2024 sale records for the parcel, and the March 2025 file in ZBA2025-020. Add whatever governs how the alternate member was seated on September 10, which bears on the composition of a 4–1 vote. Five business days to respond.

D. Site plan review **STILL AHEAD**

The variance is not the last step. A thirteen-unit development still needs Planning Board site plan approval, where drainage, DPW review, traffic and landscaping are decided on their merits and where abutters have standing to be heard again. Nothing in the variance forecloses that forum.

7. Immediate sequence

- 1. **Now.** Send the RSA 91-A request. It is the only way to get the written decision and the findings as the City recorded them, and the clock does not wait for them.
- 2. **This week.** Watch the September 10 recording and confirm every quotation intended for the motion, together with the speaker of each. Two passages need eyes on video: the “25 feet” remark at 1:20:45 and the findings at 1:56–1:59.
- 3. **By September 25.** Rebuild the motion around the record comparisons, and decide who signs — abutters joining strengthens standing and costs nothing.
- 4. **By October 9.** File. Do not let this slip to the tenth.
- 5. **October 8.** The Board meets. Sullivan Street returns that night, which is worth watching: if the Board holds that applicant to the documentation standard it announced, that is contemporary evidence for the comparison at the heart of the motion.

8. The evidence file

WHAT	WHERE IT IS
Application packets, all 13 cases of September 10	source-materials/, with searchable OCR text alongside each
Revised agenda, September 3, 2026	source-materials/meeting_2026-09-10/
Machine transcript of the whole meeting, sliced by case	analysis/, rebuilt by assemble_transcript.py
Statement-by-statement classification, 93 statements	charts/items.py, with attribution anchors in analysis/attribution.py
Hearing charts, three pages	documents/Titus_Ave_Hearing_Charts.pdf
Applicant’s public record memorandum	documents/Titus_Ave_Applicant_Record.pdf
Draft motion, records request, appeal options	documents/

Timestamps refer to the City’s recording of the September 10, 2026 meeting. Quotations come from a machine transcript, checked twice on the deliberations, and speaker attributions rest on first names heard on that recording; both should be confirmed against the video before any of this is filed. This paper is a working document and states the weaknesses in the case as plainly as the strengths, because the City’s counsel will find them either way. It is not legal advice.